



Mark Gordon, Governor

Department of Environmental Quality

To protect, conserve and enhance the quality of Wyoming's environment for the benefit of current and future generations.



Todd Parfitt, Director

November 19, 2025

Jeff Pope
Holland and Heart LLP
Suite 800
2020 Carey Avenue
Cheyenne, WY 82001

BFC POWER WYOMING INDUSTRIAL SITING COUNCIL: JURISDICTION EXEMPTION

Certified: 7018 0680 0000 8138 8330

Dear Mr. Pope,

The Industrial Siting Council issues permits for the construction and operation of large-scale industrial projects. A permit is required if the construction cost is in excess of \$290,444,666; absent the requirements for an exemption under Wyoming Statute § 35-12-119.

The Division appreciated that you and your client, BFC Power, LLC, provided information to the Division regarding BFC Power during our meeting and electronically via email on November 12, 2025.

After careful consideration by the Division, it has been determined that the industrial facility, BFC Power, meets permit exemption requirements in accordance with Wyoming Statute § 35-12-119.

I wish your client well in their endeavors.

Sincerely,

Todd Parfitt
Director
Department of Environmental Quality



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November 19, 2025

Jeff Pope
Holland and Heart, LLP
Suite 800
2020 Carey Avenue
Cheyenne, WY 82001

CHEYENNE POWER HUB PROJECT WYOMING INDUSTRIAL SITING COUNCIL: JURISDICTION EXEMPTION

Certified: 7018 0680 0000 8138 8347

Dear Mr. Pope,

The Industrial Siting Council issues permits for the construction and operation of large-scale industrial projects. A permit is required if the construction cost is in excess of \$290,444,666; absent the requirements for an exemption under Wyoming Statute § 35-12-119.

The Division appreciated that you and your client, Cheyenne Power Hub, LLC, provided information to the Division regarding Cheyenne Power Hub Project during our meeting and electronically, via email, on November 12, 2025.

After careful consideration by the Division, it has been determined that the industrial facility, Cheyenne Power Hub Project, meets permit exemption requirements in accordance with Wyoming Statute § 35-12-119.

I wish your client well in their endeavors.

Sincerely,

Todd Parfitt
Director
Department of Environmental Quality

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Jeri Sanderson

☐ Agent

☐ Addressee

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